

HOUSE No. 318

The Commonwealth of Massachusetts

PRESENTED BY:

James Arciero

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to sales at retail.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James Arciero</i>	<i>2nd Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 318

By Representative Arciero of Westford, a petition (accompanied by bill, House, No. 318) of James Arciero relative to sales at retail of meats, poultry and edible fish. Consumer Protection and Professional Licensure.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 243 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to sales at retail.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 94 of the General Laws, as appearing in the 2018 Official Edition, is hereby
2 amended by striking Section 92B in its entirety and inserting in place thereof the following new
3 section: -

4 Section 92B. All meats, poultry and edible fish, except soft shell clams and oysters, shall
5 be sold at retail only by weight and, except when sold in package form bearing a plain and
6 conspicuous statement of quantity of contents as provided in section one hundred and eighty-one,
7 such weight shall be determined at the time of sale. When meat, poultry, fish, or seafood is kept,
8 offered or exposed for sale from bulk by the portion or piece according to a pre-determined fixed
9 weight, the product identity and net weight shall be displayed, as well as the unit price at which it
10 is offered for sale. When meat, poultry, fish, or seafood is combined with some other food

11 element to form a distinctive food product, the quantity representation may be in terms of the
12 total weight of the product or combination, and a quantity representation need not be made for
13 each element provided a statement listing the ingredients in order of their predominance by
14 weight must also appear on the label. Whoever himself or by his servant or agent violates any
15 provision of this section shall be punished by a fine of ten dollars or shall be subject to a civil
16 citation as provided in section 29A of chapter 98.